Non-Disclosure Agreement (India)

This Packet Includes:

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KANINI Software Solutions India Private Limited
Rattha Tek Meadows, No. 51, Tower - A, 1st Floor, OMR, Sholinganallur,
Chennai -600 119 I Phone : +91 44 69044000 I www.KANINI.com
USA I India I Ukraine I Australia I Singapore

Description

Non-Disclosure Agreement
(India)

Non-Disclosure agreements or Confidentiality agreements are contracts entered into by two or more parties in which some or all of the parties agree that certain types of information that is disclosed by one party to the other or that are created by one of the parties will remain confidential. Such agreements are often used when a company or individual has a secret process or a new product that it wants another company to evaluate as a precursor to a comprehensive licensing agreement; when a company wants to engage an independent contractor or employ an employee to work on company's proprietary ideas, concepts etc.; when a company is looking to discuss its business and financial information for the purpose of seeking investments from investors; or, perhaps one party wants to evaluate another's existing commercial product for a new and different application.

It is important to define exactly what constitutes confidential or proprietary information and what can and cannot be disclosed. Non-disclosure agreements, thus, protect sensitive technical or commercial information from disclosure to others and also provide adequate remedy to the disclosing party in the event that the information is revealed to another individual or company or third party thereby providing the injured party to claim a breach of contract and can seek injunctive and monetary damages.

A signed Non-Disclosure agreement will be best safeguard to protect the information in three ways:

1. It emphasizes the importance of non-disclosure or confidentiality.

2. It can act as a deterrent to any party who might consider deliberate disclosure.

3. Should a violation occur, a non- disclosure agreement will work for the affected party in a court of law.

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Instructions

Non-Disclosure Agreement
(India)

Both parties should carefully review the Agreement.

This Agreement may be customized for both Mutual and Unilateral Non-Disclosure Agreements by changing the referencing terms of the parties in the way it is described in the instructions below in brackets.

Parties should clearly state what confidential information consists of more particularly in the Exhibit A.

Parties should clearly mention the Approved Purpose (as mentioned in Clause 2 below) for which the confidential information is being disclosed.

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NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("Agreement") is between

KANINI SOFTWARE SOLUTIONS INDIA PRIVATE LIMITED, bearing CIN U72200TN2005PTC057039 a company incorporated under the Companies Act 1956, with its principal place of business at No.51, Rattha Tek Meadows, Tower-A, 1st Floor, Rajiv Gandhi Salai, OMR, Sholinganallur, Chennai – 600 119 (hereinafter referred to **as "Disclosing Party"**)

And **Krushna Palekar,** residing at **Ahilyanagar , Maharashtra**, (Hereinafter referred to as **"Receiving Party"**), has certain "Confidential Information" as defined below.

WHEREAS, the Disclosing party is the Employer, and the Receiving Party is the Intern/Trainee of the Disclosing Party, and the Disclosing Party desires to disclose to Receiving Party certain confidential or proprietary information ("Confidential Information") for the Approved Purpose as a part of the Employer - Intern/Trainee relationship between them;

In consideration of the mutual agreements and covenants herein contained, the parties hereto agree as follows:

1. Information

1.1. For purposes of this Agreement, "Confidential information" shall include all information or material related to the business of the Disclosing Party, to which the Receiving Party (including an intern) may have access, that i) may derive economic value, actual or potential, from not being generally known to or readily ascertainable by other persons who can obtain economic value from its disclosure or use; and (ii) is the subject of efforts by Disclosing Party that are reasonable under the circumstances to maintain its secrecy and Classification including: (a) information disclosed in tangible form clearly and conspicuously labeled or marked as *Confidential, Classified, Proprietary* or some similar warning; (b) any oral presentation or communication identified as confidential immediately before, during or after such oral presentation or communication; or (c) information otherwise treated as Confidential.

1.2. The provisions of clause 1.1 above shall not apply to the whole or any part of the Information to the extent that it is:

1.2.1. trivial or obvious;

1.2.2. already in the possession of the Receiving Party (including an intern), other than as a result of a breach of this clause; or

1.2.3. in the public domain.

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1.3. For the purposes of this Agreement, "Confidential Information" shall also include information (written or oral), including but not limited to drawings, drafts, sketches, designs, work-in-progress, information and details about products or concepts, etc., that may be disclosed to the Receiving Party (including an intern) for the Approved Purpose.

1.4. It is further agreed by both parties that Confidential Information shall also include all Work Products.

1.5. For the purposes of this Agreement, Confidential Information shall also include the list of items set forth in Exhibit A.

2. Approved Purpose

The Disclosing party is a professionally run company with over 19 years in the business of consulting, outsourcing & advisory in the areas of IT, ITES, Web Application development, etc. The Disclosing party constantly handles information related to its potential leads, customers, clients & including client's (1) applications (2) business strategy, etc.

The Disclosing party has engaged the Receiving party (including an intern) to perform certain roles and responsibilities in the capacity of **Trainee Intern.**

The Receiving party shall use this information only for fulfilling their internship obligations and nothing else.

3. Ownership of Confidential Information

All Confidential Information disclosed by any party shall remain the property of such party. Nothing herein shall require the disclosure of any Confidential Information.

4. Use of Information and Disclosure

The Receiving Party agrees to take reasonable care to safeguard the confidential nature of the foregoing Confidential Information, and such care shall not be less than the degree of care used to prevent disclosure of its own proprietary material.

Further:

4.1. Receiving Party shall use Confidential Information given by the Disclosing Party hereunder only for purposes related to the Approved Purpose and not for its own or the benefit of any third party.

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4.2. Receiving Party will not, without the prior written consent of the Disclosing Party, disclose, give away, divulge, exchange, or make known or available, in any manner, to any person, corporation, or other entity (whether or not the Receiving Party receives any benefit therefrom) the Disclosing Party's Confidential Information or any information derived therefrom, except to a director, officer, employee, or other representative of the Receiving Party ("Authorized Person") who needs to know such Confidential Information in connection with the Services;

4.3. Receiving Party shall keep confidential all information (written or oral) concerning the business and affairs of the Disclosing Party that it has obtained or received as a result of the discussions leading up to, or the entering into or performance of, this Agreement (the "Confidential Information");

4.4. Receiving Party (a) must receive and hold the Confidential Information in trust and in the strictest confidence: (b) must protect the Confidential Information from disclosure and, in no event, take any actions causing, or fail to take actions necessary to prevent, any Confidential Information from losing its character as Confidential Information; and (c) must not use, reproduce, distribute, disclose, or otherwise disseminate the Confidential Information except in connection with the Services. Any and all reproductions of the Confidential Information must prominently contain a "Confidentiality and/or Proprietary" Label;

4.5. Receiving Party shall be under no obligation with respect to any Confidential Information that:

(a) is or becomes part of the public domain other than by breach of this Agreement by Receiving Party;
(b) is released to the public in writing by the Disclosing Party;
(c) is developed by the Receiving Party independently of any Confidential Information;
(d) is rightly received by Receiving Party from a third party; or
(e) is known to the Receiving Party prior to receipt hereunder and the Receiving Party can verify such knowledge.

5. Return of Information

Upon the written request of Disclosing Party or following the termination of this Agreement, Receiving Party, on their own accord, whether demanded or not, shall return or destroy all Confidential Information of the Disclosing Party and any notes, correspondence, analyses, compilations, documents, or other records containing Confidential Information, including all copies thereof, then in the possession of the Receiving Party or its representatives, except that a copy of such materials may be maintained by the legal counsel of the Receiving Party, so long as such information is maintained as confidential pursuant to the terms of this Agreement. Any such return of Confidential Information shall not abrogate the continuing obligations of the Receiving Party under this Agreement.

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6. Permitted disclosure

6.1. The Receiving Party shall take all practical steps to keep the Disclosing Party's Confidential Information confidential and shall restrict access to Confidential Information to other colleagues to whom disclosure is necessary in pursuit of the Approved Purpose.

6.2. In the event that the Receiving Party is required by law or legal process to disclose the Disclosing Party's Confidential Information, the Receiving Party shall notify the Disclosing Party in writing prior to making such disclosure in order to facilitate seeking a protective order or other appropriate remedy from the proper authority. The Parties agree to cooperate with each other in seeking such court order or other remedy, and further agree that, if the Receiving Party is not successful in obtaining such court order, it shall furnish only that portion of the Confidential Information that is legally required and shall exercise all reasonable efforts to obtain reliable assurances that confidential treatment will be accorded the Confidential Information.

7. Term & Survivability

The term of this Agreement shall continue for the duration of the Receiving Party's engagement as a Trainee Intern of the Disclosing Party. The provisions of this Agreement shall survive for a period of three (3) years after the termination of such engagement.

8. Acknowledgements And Disclaimers

8.1. All Confidential Information is provided "AS IS" and without any warranty, express, implied, or otherwise, including but not limited to any warranties regarding its accuracy, completeness, performance, non-infringement of third party rights, merchantability, or fitness for a particular purpose. The Receiving Party must make its own assessment of the Disclosing Party's Confidential Information and must satisfy itself as to its accuracy and completeness.

8.2. Disclosing Party is not obliged to enter into any further agreement or discussion with the Receiving Party, or to refrain from entering into an agreement or discussion with a third party, as a result of the entry into this Agreement.

8.3. Any reliance by the Receiving Party, or any other person, on any Confidential Information is solely at its own risk.

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9. Representations and Warranties

9.1. The Disclosing Party warrants that it has all necessary rights to lawfully disclose the Confidential Information, and that such Confidential Information has not been provided in breach of any other agreement or arrangement with third parties.

9.2. Each party warrants that it has the authority to enter into and perform all obligations necessary under this Agreement. Each signatory to this agreement warrants that he or she is authorized to sign on behalf of the entity for whom he or she acts.

10. Independent Contractor Status

The parties agree that Receiving Party is an intern of the Disclosing Party. Nothing in this Agreement shall be deemed to create any joint venture, partnership, or principal-agent relationship between the Disclosing Party and the Receiving Party, and neither party shall hold itself out in its advertising or in any other manner which would indicate any such relationship with the other.

11. No Publicity

The Receiving Party agrees that it shall not, without the prior written consent of the Disclosing Party, issue any press release or announcement, or otherwise disclose the existence or nature of any discussions or negotiations with the Disclosing Party, this Agreement, and the Services.

12. No Assignment

This Agreement may not be assigned by the Receiving Party without the prior written consent of the Disclosing Party, which consent shall not be unreasonably withheld. The Disclosing Party may assign its rights and obligations to any other person or entity, upon giving 30 days' prior written notice to the Receiving Party.

13. Severability

If any provision of this Agreement is held invalid in a court of law, the remaining provisions shall be construed as if the invalid provision were not included in this Agreement.

14. Waiver

No failure or delay on the part of either party in exercising any right, power, or privilege under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any such right, power, or privilege or of any other right, power, or privilege, operate as a waiver of any subsequent exercise thereof.

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15. No License

By disclosing information or executing this agreement, the Disclosing Party does not grant any license, explicitly or implicitly, under any trademark, patent, copyright, mask work protection right, trade secret, or any other intellectual property right to the Receiving Party.

16. Force Majeure

If at any time during the existence of this contract, either Party is unable to perform, in whole or in part, any obligation under this, Agreement due to war, hostility, military operations of any kind, civil commissions, sabotage, quarantine restrictions, acts of Government, fire, floods, explosions, epidemics, strikes, or other labor trouble, embargoes, or any other cause beyond human control, then the performance of such obligation shall be postponed for the duration of such circumstances.

17. Governing Law; Dispute Resolution

This Agreement shall be construed in accordance with and governed by the laws applicable to the jurisdiction of the District Courts of Chennai, in the State of Tamil Nadu, India, without regard to conflict of laws principles. All legal proceedings, including the rendering of any award, shall take place in Tamil Nadu, India, which shall be the exclusive forum for resolving any dispute, controversy, or claim arising out of or in any manner related to this Agreement.

All disputes, differences, controversies, differences of opinions, breaches, or violation arising from or related to this Agreement between the parties shall be resolved by mutual discussions and reconciliations in good faith.

If any such dispute, difference, controversy, differences of opinion, breach or violation arising out of or related to this agreement cannot be resolved within sixty (60) days from the commencement of discussions or reconciliations, then such ~~a~~ dispute shall be finally resolved by binding arbitration in accordance with the provisions of the Arbitration and Conciliation Act, 1996, as amended from time to time, and the rules framed thereunder, including the arbitration rules of the Indian Council of Arbitration. The arbitral tribunal shall consist of three arbitrators appointed in accordance with the said rules. The Arbitration and all related proceedings shall be conducted in English.

In connection with the arbitration proceedings, the parties to the dispute hereby agree to cooperate in good faith with each other and with the arbitral tribunal, and to use their respective best efforts to respond promptly to any reasonable discovery requests made by any party or the arbitral tribunal.

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The costs of the arbitration shall be borne by the Parties to the dispute in accordance with the provisions of the Arbitration and Conciliation Act, 1996, as amended from time to time, and the applicable rules of the Indian Council of Arbitration. The Award may include interest from the date of any breach or other violation of this Agreement, and rate of such interest, if any, shall be specified by the arbitral tribunal and shall be calculated from the date of such breach or violation until the date the award is paid in full. Each Party expressly understands and agrees that the Award shall be the sole, exclusive, final, and binding remedy between them regarding all disputes presented to the arbitral tribunal. An Application may be made to any court having jurisdiction over the party (or its assets) against whom the Award is rendered for ~~a~~ judicial recognition and enforcement of the award.

18. Injunctive Relief

18.1. The Parties acknowledge that compliance with this Agreement is necessary to protect the goodwill and other proprietary interests of the Disclosing Party, and that a breach of this Agreement will give rise to irreparable and continuing injury to the Disclosing Party that is not adequately compensable in monetary damages or at law. Accordingly, the Parties agree that the Disclosing Party may obtain injunctive and other equitable relief against any breach or threatened breach of the foregoing provisions, in addition to any other legal remedies that may be available under this Agreement. If the Disclosing Party makes an application to a court of competent jurisdiction for injunctive relief to enforce this Agreement, the Receiving Party waives, to the greatest extent permissible, any requirement that the Disclosing Party post a bond or other security as a precondition to an injunction, whether temporary or permanent.

18.2. Each Party agrees that if the Receiving Party violates any of the obligations under this Agreement, the Disclosing Party shall be entitled to an accounting and repayment of all profits, compensation, commissions, remuneration, or other benefits that the Receiving Party, or any third party given access to (or possession of) the Disclosing Party's Confidential Information, directly or indirectly by the Receiving Party, has realized and/or may realize as a result of, arising out of, or in connection with such violation. These remedies shall be in addition to, and not in limitation of, any injunctive relief or other rights to which the Disclosing Party is or may be entitled at law, ~~or~~ in equity, or under this Agreement.

18.3. In the event either Party initiates action to enforce its rights hereunder, the prevailing Party shall recover from the non-prevailing Party its reasonable expenses and court costs, including taxed and untaxed costs, and reasonable attorneys' fees, whether or not a suit is brought.

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19. Electronic Signature

19.1. Counterparts

This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. To expedite the process of entering into this Agreement, the parties agree that signed Transmitted Copies shall be deemed equivalent to original documents until such time as original documents are executed and delivered.

19.2. Notice

All notices under this Agreement shall be in writing and shall be deemed given:

19.2.1. when personally delivered; or

19.2.2. when sent by confirmed fax; or

19.2.3. when sent by confirmed e-mail; or

19.2.4. when sent by registered post to the address of the party set out in this Agreement or to such other address as such party may last provided to the other party by written notice.

20. Final Agreement

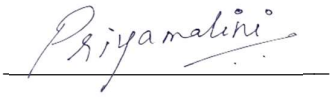
This Agreement constitutes the entire understanding between the Parties and supersedes all prior understandings or agreements on the subject matter hereof. This Agreement may be modified only by a written document duly executed by both Parties.

21. Headings

Headings used in this Agreement are provided for convenience only and shall not be used to construe meaning or intent of this Agreement.

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Signed for and on behalf of the Disclosing Party by:

Signature: 

Name: Priya Malini Rajagopalan

Designation: Associate Director - Talent Enablement

KANINI SOFTWARE SOLUTIONS INDIA PRIVATE LIMITED

Signed for and on behalf of the Receiving Party by:

Signature:

Name: Krushna Palekar

EXHIBIT A

Confidential Information shall also include:

- ☐ Any & all contents, including email addresses, lists, passwords, etc.;
- ☐ Any & all contents of the email account ***(*Intern mail id*)***, including email conversations, chat conversations, documents shared via email, documents shared or created via drive & its associated products, etc.;
- ☐ Login details & passwords for any web applications, sites, or applications provided by the Disclosing party;
- ☐ Information, whether general, financial, or otherwise, related to the Disclosing party;
- ☐ Information, whether general, financial or otherwise related to the Disclosing party's clients;
- ☐ All Research information generated with reference to the Leads or opportunities by the Receiving Party

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